

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Melissa Castellucci v. Peju Family Operating Partnership, LP

25CV000098

PLAINTIFF’S MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGE SETTLEMENT

TENTATIVE RULING: In reviewing the motion for preliminary approval of class action settlement, the Court orders further briefing on the following items:

- 1) A reasonable estimate of the nature and amount of recovery that each class member could have obtained if plaintiff prevailed;
- 2) Amount, or an estimate, of what each class member will receive from the settlement amount;
- 3) Explanation as to why the class representative enhancement is reasonable in light thereof;
- 4) Plaintiff shall submit a supplemental declaration estimating the number of hours she spent on the matter as class representative;
- 5) Plaintiff shall provide California caselaw authorizing class counsel fees in the amount of 35% of the settlement.

The additional briefing shall be filed and served by August 25, 2026. The matter is CONTINUED to September 2, 2026, at 8:30 a.m. in Dept. A.

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Laurie Capitelli et al v. Melinda Stewart et al

26CV000878

DEMURRER TO PLAINTIFFS’ VERIFIED COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to September 3, 2026 at 8:30 a.m. in Dept. A.
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PETITION FOR CHANGE OF NAME

TENTATIVE RULING: The matter is CONTINUED to August 21, 2026, at 8:30 a.m. in Dept. A.

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Okell Holdings, LLC et al v. Quantum Limited Partners, LLC et al

26CV001310

MOTION FOR PRELIMINARY INJUNCTION

TENTATIVE RULING: The Motion is DENIED.

A. PROCEDURAL MATTERS

Plaintiffs Okell Holdings, LLC and Jason Anderson (“Anderson”) (collectively, “Plaintiffs”) move, pursuant to Code of Civil Procedure sections 525, 526, and 527,¹ for a preliminary injunction enjoining Defendants Quantum Limit Partners, LLC, Glenn C. Rice and Cynthia Hoy (collectively, “Defendants”) from specific conduct that would further interfere with Plaintiffs’ claimed rights in the Water System. (See Notice of Motion, p. 2.)

1. Notice

“A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC).” (Rules of Court, rule 3.1150(a).) However, “[a]n OSC *must* be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.” (*Ibid.* Emphasis added.)

Here, Plaintiff did not utilize an OSC, but rather noticed their request for a preliminary injunction as a motion under section 1005. However, Plaintiffs sought a TRO and, at the time of filing the Motion, Defendants had not yet appeared in the action; both circumstances require an OSC rather than a noticed motion. This procedural issue is a matter of jurisdiction. (See *JHVS Group, LLC v. Slate* (2024) 107 Cal.App.5th 30, 37-38 [reversing grant of preliminary injunction where defendants not served with summons and complaint and therefore not subject to court’s jurisdiction].)

However, here, Defendants were ultimately served with the Summons and Complaint on July 13, 2026 (prior to their opposition deadline) and filed an Opposition responding to the substance of the Motion without raising any jurisdictional objection. Therefore, the Court overlooks Plaintiffs’ non-compliance with Rules of Court rule 3.1150 as well as the procedural

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.